

TENTATIVE RULING

Case: **Perez v. Wyndham Destinations, Inc.**
Case No. CV2021-0289

Hearing Date: **July 28, 2026** **Department Thirteen** **9:00 a.m.**

The Court, in its discretion, considers plaintiff Benjamin Perez’s untimely opposition. (See Code Civ. Proc., § 1005, subd. (b); Cal. Rules of Court, rule 3.1300(d); *Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker* (2016) 2 Cal.App.5th 252, 262 [stating that “a trial court has broad discretion to accept or reject late-filed papers”]; Janfaza decl., ¶¶ 4-12, Exhibit A.)

Defendants Vineshwar K. Goundar and S.A.V. Texas, LLC’s motion to compel plaintiff’s attendance at deposition is **DENIED**. (Code Civ. Proc., § 2025.010 et seq.) This discovery motion was not set to be “heard on or before the 15th day, before the date initially set for the trial of the action.” (Code Civ. Proc., § 2024.020, subd. (a).) Trial is set for August 11, 2026, requiring any discovery motions to be heard on or before July 27, 2026. (*Ibid.*; Janfaza decl., ¶¶ 16-22 [Defendant’s counsel had the opportunity to depose plaintiff at a noticed deposition on April 21, 2026, because plaintiff appeared personally with a laptop and cell phone for his attorney. Defense counsel refused to allow plaintiff’s attorney to appear remotely, and plaintiff would not go forward without his counsel.]])

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Sarkis v. Yolo County Public Agency Risk Management Insurance Authority et al.**
Case No. **CV2024-2614**
Hearing Date: **July 28, 2026** **Department Fourteen** **9:00 a.m.**

On July 13, 2026, plaintiff Armond Sarkis filed a notice of supplemental authority in support of his motion to strike defendants Yolo County Public Agency Risk Management Insurance Authority and Jill Cook’s (collectively, “defendants”) memorandum of costs, or in the alternative, to tax costs. (Notice of Supp. Auth. [filed 7/13/26].) In its discretion, the Court will consider plaintiff’s notice of supplemental authority. (Cal. Rules of Court, rules 3.1300(a), (d), 3.1112(b); Code Civ. Proc., § 1005, subd. (b); see *Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker* (2016) 2 Cal.App.5th 252, 262 [stating that “a trial court has broad discretion to accept or reject late-filed papers.”].)

On the Court’s own motion, plaintiff’s motion to strike defendants’ memorandum of costs as premature, or, in the alternative, to tax costs is **CONTINUED** to **August 26, 2026**, at 9:00 a.m. in Department Fourteen.

By **August 14, 2026**, defendants may file a response to plaintiff’s notice of supplemental authority.

No other documents will be considered.